

A

M E A S U R E

PASSED BY

The National Assembly of the Church of England

To confer upon the Ecclesiastical Commissioners power to establish and fix parochial tables of fees for the performance of church offices and matters incidental thereto : to amend the Glebe Lands Act, 1888, and to make applicable to future sales under that Act the provisions of the Ecclesiastical Leasing Acts as to improvement of annual value : to give additional powers to the Ecclesiastical Commissioners as to the application of money arising from the sale of property of a benefice under the Ecclesiastical Leasing Acts or the Glebe Lands Act, 1888, and to enable them to rearrange charges on endowment of a benefice in favour of another benefice : to remove a doubt arising under the Union of Benefices Act, 1860 : to enable the Ecclesiastical Commissioners to withdraw certain curate grants : to make provision for payment to the incumbents of benefices by regular quarterly instalments of such part of the income of their respective benefices as is received by them from the Ecclesiastical Commissioners : to give additional powers to the Ecclesiastical Commissioners in relation to funds

available for the endowment of benefices and in relation to curate funds: and to amend section two of the Ecclesiastical Commissioners Act, 1850, as to the salaries payable to Church Estates Commissioners. [23rd June 1938.]

Tables of
parochial
fees to be
established
by the
Ecclesias-
tical Com-
missioners.

1.—(1) It shall be lawful for the Ecclesiastical Commissioners and they are hereby empowered, subject to the provisions hereinafter contained, to establish and fix for any parish a table of fees to be payable for or in respect of the solemnization or performance of church offices, the erection of monuments in churchyards and such other services or matters as may by any law or custom be now included in such tables, and also at any time and from time to time to revoke any table of fees for the time being in force for any parish whether such table shall have been established or fixed under the powers conferred by this section or under any previous statutory power or by or under any custom or otherwise, and establish and fix a new table in substitution therefor.

13 & 14 Vict.
c. 41.
6 & 7 Vict.
c. 37.

(2) All powers now vested in any authority or person other than the Ecclesiastical Commissioners to establish, fix, alter or add to any table of fees for any parish whether under or by virtue of any custom or usage or under or by virtue of the provisions of any statute, including the powers conferred by section thirty-three of the Parish of Manchester Division Act, 1850, and by section fifteen of the New Parishes Act, 1843, shall as from the commencement of this Measure determine and be no longer exercisable.

(3) The Ecclesiastical Commissioners may include in any such table of fees directions as to the amount of any fee or the method of fixing the amount thereof, as to the person to whom any fee shall be payable and as to the purpose or purposes to which any fee shall be allocated, and provisions as to the payment of special or increased fees for special services.

(4) Every table of fees which shall be fixed in exercise of the powers conferred by this present section shall be established and put on record by an instrument in writing under the seal of the Commissioners giving particulars of such table. Every such instrument shall

be registered in the registry of the diocese in which the parish concerned is situate, and shall take effect as from the date of the instrument or from such other time as may be appointed in that behalf by the instrument. And all fees so fixed and established may be demanded, received, sued for and recovered by the spiritual person or clerk or sexton or other person to whom the same shall be assigned or allocated in like manner, and by such or the same means as would be available or applicable if such fees were ancient legal fees.

(5) The Ecclesiastical Commissioners shall in relation to any parish exercise the powers conferred by this section if and when requested in writing so to do by the incumbent and the parochial church council (if any) of the parish.

(6) Save as hereinafter provided no table of fees for any parish shall be fixed under the powers hereinbefore contained unless and until the same shall have been approved by the bishop and by the incumbent and the parochial church council (if any) of the parish.

(7) In any case where it shall appear to the bishop that a new table of fees should be established and fixed for any parish and either no application shall have been made by the incumbent and the parochial church council to the Ecclesiastical Commissioners to exercise the powers in that behalf hereinbefore contained or such application as aforesaid shall have been made but the incumbent or the parochial church council shall have refused or failed before the expiration of such reasonable period as the bishop may allow for that purpose to approve of any table of fees proposed by the Ecclesiastical Commissioners and approved by the bishop, then and in such case it shall be lawful for the Ecclesiastical Commissioners, at the request of the bishop, to establish and fix a new table of fees for the said parish without the approval or consent of the incumbent or the parochial church council, but otherwise in manner hereinbefore provided, subject to the following conditions, namely :—

- (i) Notice in writing of the intention of the Ecclesiastical Commissioners to proceed under this subsection shall be given to the incumbent and parochial church council (if any);

- (ii) A copy of the new table of fees for such parish as proposed by the Ecclesiastical Commissioners and approved by the bishop shall be served upon the incumbent and the parochial church council (if any), together with a notice to the effect that any representations in respect thereof submitted to the Ecclesiastical Commissioners by the incumbent or by the parochial church council (if any) within one month thereafter will be considered;
- (iii) Any representations so submitted shall be referred to the bishop for his advice and opinion thereon, and shall be duly considered before any instrument shall be executed for establishing such table of fees;
- (iv) The powers of this present subsection shall not be exercised so as adversely to affect the rights of any incumbent without his consent in writing.

(8) In any case where any new table of fees for any parish shall be fixed or established in exercise of the powers conferred by this section, a copy of such table of fees shall be sent by the Ecclesiastical Commissioners to the incumbent of the parish, together with a statement of the date or event on which the same has or will become applicable.

(9) It shall be the duty of the incumbent for the time being of every parish to procure that a copy of the table of fees in force in the parish shall at all times be publicly exhibited and kept exhibited in some suitable position in the church or churches of the said parish so as to be openly displayed and readily accessible to parishioners and other persons entering such church or churches.

(10) For the purposes of this section—

“ Parish ” shall include any ecclesiastical parish, parochial chapelry or other place within the limits of which any incumbent or minister has the cure of souls and is entitled to retain for his own benefit the fees chargeable in respect of the performance of church offices;

In relation to any parish as aforesaid "the bishop" shall mean the bishop of the diocese in which such parish is situated;

In relation to any parish as aforesaid "the incumbent" shall mean the incumbent or other the holder of the benefice which comprises such parish.

2.—(1) Notwithstanding anything contained in sub-section (4) of section four of the Glebe Lands Act, 1888, all securities at any time hereafter bought out of purchase money arising under that Act and held by the Ecclesiastical Commissioners and all securities at any time hereafter bought or acquired by the Ecclesiastical Commissioners in or for effecting any variation of the investment of any such purchase money as aforesaid shall be entered in the books kept by any company in relation to those securities in the name of the Ecclesiastical Commissioners alone and stand in those books to their general account without any designation of a separate account or other reference to the benefice from which such purchase money shall have arisen.

Amendment
of the Glebe
Lands Act,
1888.
51 & 52 Vict.
c. 20.

(2) Any company in whose books there is standing in the name of the Ecclesiastical Commissioners on a separate account *ex parte* any benefice any security bought out of or representing the purchase money under the Glebe Lands Act, 1888, of the glebe of such benefice shall if and when so required by notice in writing under the seal of the Commissioners and upon production to the company of a copy of this Measure transfer such security from such separate account to the general account of the Ecclesiastical Commissioners and such notice together with the production of such copy as aforesaid shall be a sufficient authority for the company to make any such alterations in their books and in any stock certificate or other certificate relating to such account as may be necessary or proper for giving effect to the provisions of this subsection.

(3) Every such security as aforesaid which under the provisions of this section shall be entered or transferred in the books of any company to the general account of the Ecclesiastical Commissioners shall be entered in the books of the Ecclesiastical Commissioners to the separate credit of the benefice from which the purchase money

represented by such security shall have arisen and be held upon such trusts for the benefit of that benefice or other purposes as may be applicable thereto under the provisions of the Glebe Lands Act, 1888, or otherwise, but subject in the case of any sale under the said Act of the glebe of any benefice which may be effected after the commencement of this Measure to the provisions of section three hereof respecting any improvement in the annual value of the benefice which may accrue by means of such sale.

(4) In this section "company" includes the Bank of England and any body corporate, company or person keeping books in which any stock or other security is registered or inscribed.

Appropriation of improved income arising on sales under the Glebe Lands Act, 1888.

26 Geo. 5. &
1 Edw. 8.
No. 5.

3.—(1) The provisions of the Ecclesiastical Leasing Acts respecting improvements in the annual value of any benefice accruing by means of the sale of any property of the benefice under the said Acts which enable or authorise a portion of the improved income of the benefice to be paid to the Ecclesiastical Commissioners and applied by them in making additional provision for the cure of souls and also the additional powers in relation to any such improved income which are conferred by section four of the Ecclesiastical Commissioners (Powers) Measure, 1936, shall extend and apply to any improvement of income accruing by means of a sale of glebe of any benefice effected after the commencement of this Measure under the provisions of the Glebe Lands Act, 1888, in all respects as if the sale had been effected under the Ecclesiastical Leasing Acts.

Extension of section five of the Ecclesiastical Commissioners (Powers) Measure, 1936, to funds arising under the Glebe Lands Act, 1888.

(2) The provisions of section five of the Ecclesiastical Commissioners (Powers) Measure, 1936, shall extend and apply to any funds or securities at any time standing in the books of the Ecclesiastical Commissioners to the credit of any benefice and representing money arising from a sale of glebe under the Glebe Lands Act, 1888, or to the proceeds of the realisation of any such funds or securities whether the sale shall have been effected before or after the passing of this Measure.

Enlarge-ment of the powers conferred by section five

(3) Any moneys, securities or other funds held by the Ecclesiastical Commissioners to the credit of any benefice and available for the purposes mentioned in section five of the Ecclesiastical Commissioners (Powers)

Measure, 1936, either under the provisions of that section or under the provisions of the last preceding subsection hereof, may be laid out or expended in relation to such benefice by the Ecclesiastical Commissioners at the request of the incumbent and subject to the like conditions as are mentioned in section five of the Ecclesiastical Commissioners (Powers) Measure, 1936, for or towards any one or more of the following further purposes, namely, the provision of a new parsonage house, the provision of new glebe buildings, the purchase of a site for any such house or buildings, or the rebuilding or reconstruction of any existing parsonage house or glebe buildings.

4.—(1) In any case where the endowment of any benefice (hereinafter referred to as a "recipient benefice") consists of or comprises an annual sum constituting a permanent charge on the endowment or any part of the endowment of any other benefice (hereinafter referred to as a "charged benefice") the Ecclesiastical Commissioners shall have power to substitute for the annual sum so charged or any part thereof an annual sum of the like amount to be paid by them out of their common fund to the incumbent for the time being of the recipient benefice, and to appropriate for the benefit of their common fund out of any endowment of the charged benefice held by them or payable out of their funds such portion of the said endowment as will in their opinion produce an annual income equal to the amount of the annual sum so to be paid out of the common fund.

Power to rearrange charges on benefices.

(2) Every such payment to be made out of the common fund shall be secured, and every such appropriation for the benefit of the common fund shall be effected by an instrument under the common seal of the Commissioners, and the provisions of section five of the Ecclesiastical Commissioners Act, 1866, in relation to instruments made under that section, shall extend and apply to any instrument sealed by the Ecclesiastical Commissioners for the purposes of this present section.

29 & 30 Vict.
c. 11.

(3) From and after the taking effect of any instrument as aforesaid the endowment of the charged benefice shall be discharged from the payment of the annual sum charged thereon, or (as the case may be) from payment of the part thereof for which a payment out of the common fund has been substituted.

(4) The powers conferred by this section shall only be exercisable—

(i) At the request of the incumbents of the recipient benefice and the charged benefice; or

(ii) After three months' notice in writing shall have been given to the said incumbents of the intention of the Ecclesiastical Commissioners to exercise the said powers in relation to the said benefices.

Amendment
of the
Union of
Benefices
Act, 1860.
23 & 24 Vict.
c. 142.

5. The provisions contained in section twenty-two of the Union of Benefices Act, 1860, which empower the Ecclesiastical Commissioners with such consent as therein mentioned to apply the surplus of the moneys therein referred to for the benefit of any benefice or benefices in the metropolis shall be read and construed as empowering and as having at all times heretofore empowered the Ecclesiastical Commissioners to apply such surplus moneys with such consent as aforesaid for the benefit of any benefice or benefices in the metropolis or in the vicinity thereof as defined by the Union of Benefices Act, 1898, to the benefit of which the Ecclesiastical Commissioners may with such consent think fit to apply the same.

61 & 62 Vict.
c. 23.

Power to
withdraw
or reduce
curate
grants.

3 & 4 Vict.
c. 113.

6.—(1) In any case where any annual or other periodical sum shall be payable out of the common fund of the Ecclesiastical Commissioners towards the payment of the stipend of an assistant minister or curate for any benefice pursuant to a grant made in exercise of the powers conferred by section sixty-seven of the Ecclesiastical Commissioners Act, 1840, and the Ecclesiastical Commissioners shall be of opinion that the grant ought to be determined or reduced in amount, it shall be lawful for them, with the consent in writing of the bishop of the diocese and subject to the conditions hereinafter mentioned, by an instrument under their seal published in the London Gazette to declare that the grant shall as from such date or event as shall be specified in the instrument in that behalf, be either wholly determined or reduced to such amount as shall be stated in the instrument, and upon such instrument being published as aforesaid the provisions thereof shall be of full force and effect and binding upon all persons concerned :

Provided always that—

- (i) the determination or reduction of any grant under the provisions of this section shall not, save with the consent in writing of the incumbent of the benefice in favour of which the grant was made, take effect until after the first vacancy of the said benefice which shall happen subsequently to the date of the instrument of determination or reduction;
- (ii) where at the date of any such instrument as aforesaid an assistant minister or curate shall under or by virtue of an engagement or employment then current be in receipt of a stipend wholly or partly provided out of the grant to which the instrument relates the determination or reduction (as the case may be) of the grant shall not take effect before the expiration of six months from the date of the instrument or before the termination of such engagement or employment whichever shall first happen.

(2) The Ecclesiastical Commissioners shall before executing any instrument under the provisions of this section in relation to any grant as aforesaid give notice in writing to the incumbent of the parish concerned and to the parochial church council of such parish that the determination of the grant in whole or in part is under consideration, and that any representations which may be made within two months by the incumbent or by the parochial church council with reference thereto will be duly considered.

(3) Nothing in this section contained shall prevent the Ecclesiastical Commissioners from discontinuing, suspending or reducing the amount of any grant as aforesaid in any case where it may be lawful or competent for them without reference to the provisions of this section to effect such discontinuance, suspension or reduction.

7.—(1) The Ecclesiastical Commissioners may at any time or times prepare and submit for confirmation to His Majesty in Council a scheme empowering them to pay in such manner as hereinafter mentioned to the incumbent of every benefice or other the person from

Power to prepare a scheme providing for quarterly payments to incumbents.

time to time entitled to receive the income of the benefice (any reference to the incumbent hereinafter contained being intended to include any such other person as aforesaid) such part of the income of the benefice from whatever source derived as is payable to the incumbent by the Ecclesiastical Commissioners.

(2) The said scheme shall empower the Ecclesiastical Commissioners to pay the said income for each year by four quarterly instalments on such quarterly days in every year as may be deemed suitable, each of the quarterly instalments for each year to be of such amount as shall as nearly as reasonably practicable be equivalent to one-fourth part of the whole net amount of the said income for that year, as such net amount shall be estimated or computed for the purposes of such quarterly payments, after providing for any deductions or outgoings which may be chargeable against the said income and properly or conveniently payable thereout by the Ecclesiastical Commissioners, so nevertheless that periodical or other adjustments shall from time to time be made so as to secure that every incumbent shall receive or be allowed in respect of each year or other period during which he shall be entitled to receive the income of the benefice the full net sum and not more than the full net sum which he ought to have received as and for the portion for such year or other period of the income of the benefice intended to be brought into account for the purposes of the scheme.

(3) Any scheme as aforesaid may make provision for the several matters hereinafter mentioned, and so that any reference hereinafter contained to the income of any benefice shall be read and construed as referring to the portion of the income thereof to which the scheme applies, that is to say—

- (i) as to the date on which the scheme shall come into operation and as to the day from which the financial year for the purposes of the scheme shall run, and the days on which the quarterly payments thereunder shall be made;
- (ii) for paying to every incumbent affected by the scheme the net amount of the income of his benefice unpaid or accruing at the date of the commencement of such first financial year as apportioned down to that date after providing

for all deductions or outgoings as aforesaid apportioned to the like date and for taking all proper accounts and making all necessary apportionments for the above purpose;

- (iii) as to the manner in which the gross amount of the income of any benefice shall be estimated or computed, and as to the deductions or outgoings to be brought into account in estimating or determining the quarterly instalments to be payable during each financial year, and as to the times at which and the manner in which the amount of such quarterly instalments shall be fixed or determined;
- (iv) as to the times at which and the manner in which the periodical or other adjustments above referred to shall be made and as to the payment of any balance found on making any such adjustment to be due to or from any incumbent;
- (v) as to the manner in which the income of any benefice shall be apportioned on any change of incumbent whether by reason of death, resignation, preferment, exchange or otherwise or on any sequestration or other event by reason whereof any apportionment of such income shall become necessary or proper;
- (vi) as to any accounts to be kept for the purposes of the scheme;
- (vii) for excluding either permanently or temporarily from the operation of the scheme any income of such a character as may in the opinion of the Ecclesiastical Commissioners render its inclusion undesirable or inconvenient;
- (viii) for giving reasonable notice to incumbents entitled to receive quarterly payments under the scheme of any substantial alteration whether by way of increase or decrease which may at any time or from time to time be made in the amount of such quarterly payments;
- (ix) as to any other matter or thing for which it may be deemed proper or desirable to provide for ensuring that the arrangements intended to be effected by the scheme may work efficiently and operate in such manner as to be just and fair to all persons concerned.

(4) The Ecclesiastical Commissioners may also at any time or times prepare and submit for confirmation to His Majesty in Council any supplementary or other scheme or schemes for remedying any defects or supplying any omissions which may be found in any existing scheme under this section then already confirmed by an Order in Council or for making any alterations or additions to any such existing scheme or for substituting a new scheme for any such existing scheme.

Powers in
relation to
appropriations of
endowments
of benefices.

8.—(1) Where under the provisions of any statute or Measure the Ecclesiastical Commissioners are empowered to make in any scheme to be prepared by them for submission to His Majesty in Council recommendations for the augmentation of any specified benefice or proposed benefice out of or by diversion of any of the revenues or endowments of any other benefice such scheme may recommend in lieu of any such augmentation that a part of the said revenues or endowments be transferred to or become vested in the Ecclesiastical Commissioners without any further conveyance or assurance to be held by them as part of or for the benefit of their common fund.

(2) Where under the provisions of any statute or of any Order of His Majesty in Council ratifying a scheme of the Ecclesiastical Commissioners any part of the endowment of any benefice has been or shall hereafter be appropriated as a fund applicable for or towards payment of the stipend of an assistant curate or of the expenses of assistance by clergy or lay workers the Ecclesiastical Commissioners may require the incumbent of the benefice or other the person or body by whom the fund is administered to render to them annually or in respect of any stated year or years duly audited accounts of the said fund and shall have power with the approval of the bishop of the diocese in which the benefice is situated from time to time to direct that any unexpended income appearing to them not to be required for the purposes for which the fund was appropriated shall be paid over to them to be held as capital and invested either for the augmentation of the said benefice or for the benefit of their common fund or that such unexpended income shall be paid to the incumbent of the benefice.

(3) Any account to be rendered under the provisions of the last preceding subsection shall be in such form as the Ecclesiastical Commissioners may require, and if at any time a full and sufficient account shall not be rendered within two months after the service of an application in writing therefor the Ecclesiastical Commissioners may prepare and submit to His Majesty in Council a scheme directing that the appropriated fund shall be transferred to them to be held by them for any purposes in relation to the benefice to which the said fund belongs or for the benefit of their common fund as the Ecclesiastical Commissioners, with the approval of the bishop of the diocese, may decide.

9. Notwithstanding anything contained in section two of the Ecclesiastical Commissioners Act, 1850, the salaries to be paid to the First Church Estates Commissioner and to the Church Estates Commissioner appointed by the Archbishop of Canterbury shall be such amounts as may be from time to time fixed by the Ecclesiastical Commissioners with the approval of the Treasury.

Salaries
of Church
Estates
Commis-
sioners.
13 & 14 Vict.
c. 94.

10. An Order in Council confirming whether with or without variation any scheme under this Measure shall as soon as may be after the making thereof by His Majesty in Council be published in the London Gazette, and every such Order in Council and the provisions of the scheme as thereby confirmed shall so soon as the Order shall have been gazetted have full force and effect in law in all respects as to all things therein contained.

Orders in
Council to
be gazetted
and to have
the force of
law.

11. In this Measure "benefice" shall include a benefice with cure of souls and no other and shall comprehend all rectories and vicarages with cure of souls, perpetual curacies and endowed public chapels, parochial chapelries and chapelries or districts belonging or reputed to belong or annexed or reputed to be annexed to any church or chapel and districts formed for ecclesiastical purposes by virtue of statutory authority.

Interpreta-
tion.

12. The provisions of section seven of this Measure shall extend and apply both to the Isle of Man and to

Application
of the
Measure.

[No. 4.] *Ecclesiastical* [1 & 2 GEO. 6.]
Commissioners (Powers) Measure, 1938.

the Channel Islands, but save as regards the said section this Measure shall not apply either to the Isle of Man or to the Channel Islands.

Short title. **13.** This Measure may be cited as the Ecclesiastical Commissioners (Powers) Measure, 1938.

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